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QUSTODIO FAMILY PRIVACY POLICY

Last Updated: 28 October, 2023

Qustodio Technologies SL (“Qustodio”, the “Company”, or “we/us”) is committed to respecting and protecting your privacy and that of your Users. This Privacy

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Section A of the policy.

- Your User and Monitored Devices information is processed on your behalf, for providing the parental control and monitoring services through the control panel. This is described in Section B of the policy.

You are sole responsible for the configuration and use of the parental control panel and the processing of personal data associated with your account which includes, among others, collecting, storing, and analysing personal data from Users’ Monitored Devices. The Qustodio Services automatically deploys the configuration and the instructions given by you and you are solely responsible

for the configuration of this control panel. You can change those configurations and provide instructions to limit and/or erase any data collected within the control panel.

If you use the Qustodio Service to see data about your User's usage of school devices collected by Linewize Inc. through its service School Manager, please read section C of this Privacy Policy.

We Comply With The Children's Online Privacy Protection Act of 1998 (COPPA)

COPPA and its rules require us to inform parents and legal guardians ("parents") about our practices for collecting, using, and disclosing personal information from children under the age of 13 ("children"). It also requires us to obtain verifiable consent from a child's parent, or confirm that the child's

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from the Monitored Devices ("User Data") by Qustodio in its capacity as Processor, which is regulated by Section B attached.

1. **Data Controller**

The Data Controller is Qustodio Technologies SL, Roger de Flor 193, bajos, 08013, Barcelona, Spain. You can contact to our Data Protection Officer to send any suggestions, queries, doubts or complaints about personal data, or to access your personal data by writing to: dpo@qustodio.com.

2. **Data collection by the Company through the Services**

Data Collection

Qustodio will collect and process as data controller the following personal data through the Services:

- **Registration Data:** On registering for Services, we will collect the following personal data about you: name, surname, email address and telephone. This data is mandatory and if it is not provided, your account cannot be created.
- **Payments:** Our payment providers (PayPal, Braintree, Cleverbridge, Chargebee and Stripe) collect certain payment data which is processed according to their terms and privacy policy which is provided to you during the payment process. You can visit https://www.braintreepayments.com/en-es/legal, https://www.cleverbridge.com/corporate/privacy-policy/, https://www.chargebee.com/privacy/ and https://stripe.com/it/priva

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We collect information that identifies, relates to, describes, references, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer, household, or device ("**personal information**"). Personal information does not include:

- Publicly available information from government records.
- Deidentified or aggregated consumer information.

Please refer to Appendix I for more detail on the categories of personal information we have collected from consumers within the last twelve (12) months.

We obtain the categories of personal information listed in the previous section from the following categories of sources:

- Directly from you. For example, from forms you complete or features of the Qustodio Services you interact with.
- Indirectly from you. For example, from observing your actions within the Qustodio Services.

Purposes for Processing: The personal data we collect about you are used for performing our contract and communications with you, for managing your Qustodio Account and for providing our Services to you (as described in the Terms). The data we collect are also used to measure and improve the Services and its functionality and to provide customer service, send email

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- **Comply with a legal or regulatory obligation.** We may process your personal data where it is necessary for compliance with a legal or regulatory obligation that we are subject to.

Generally, we do not rely on consent as a legal basis for processing your Account Data other than in relation to sending own marketing communications to you via email or text message. *However, for transparency and clarity, we ask you to provide this consent, which is given by you on registering your account.* You have the right to withdraw consent at any time by contacting us at info@qustodio.com. This will not affect the processing of your Registration Data for service provision until you cancel your account.

Service Optimisation

We may process data on an aggregated non-identifiable basis for establishing user general attributes and profiles and share such anonymous information with third-party service providers to improve or promote our Services. We also use your data in a non-identifying and aggregated manner (i.e., dissociated data) to better design our website, software, and services.

Disclosure

We treat your personal data with strict confidentiality in accordance with applicable law. However, we disclose any information about you or your use of our Services: (i) in order to comply with the legal obligations we are subject to, (ii) in order to correctly deliver our Services or perform other obligations in accordance to the Terms, (iii) in the event of a sale or change of control of the

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Users is or may be detrimental to the provision of the Services, we will notify you. We reserve the right to (and will, if we are obliged to by court or applicable law or to protect our interests and business, and in particular, but without limitation, if we receive a Notice from a third party or if user activity on a device is or may, in our opinion, be detrimental to the provision of the Services): (a) suspend or block access to your Device(s) to the Internet or to certain websites/internet services; and (b) provide any party providing the Notification to us or a Court or public authority with your name and contact details and/or (c) terminate your Account.

For iOS devices, after installing the MDM profile, Qustodio will have access to all the traffic of the device. This information (coming from the device) only goes to

Qustodio servers and is not shared with any third party. The specific information collected through MDM is:

- Domain names, user agent and operating system version; in order to categorize websites and applications visited by the device, and thus make the filtering established by the parent. It is also used to report activity to the parent.
- the URL address in the web search engines; to report the search to the parents.

Data Retention

We will only retain your personal data for as long as necessary to fulfil the

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and reports about behaviour patterns and tendencies.

3. **International Transfers of Data**

We use third party technological services for the provision of our Qustodio Services, whose providers may process your personal data as sub-processors. These entities may be in jurisdictions that generally do not provide adequate safeguards in relation to the processing of personal data. For all entities outside the Economic European Area, we have entered contracts with such entities that do include such safeguards, including the EC model clauses, and **implemented additional safeguards in accordance with applicable law:**

- **Amazon Web Services:** (Amazon.com, Inc.) provides us with cloud hosting services outside the European Economic Area (USA). For more information, visit Amazon's Privacy Policy at: https://aws.amazon.com/privacy/
- **Braze, Inc:** allows us to improve the experience of our users. For more information, visit Braze's Privacy Policy: https://www.braze.com/privacy
- **CHARGEBEE INC:** provides us with billing and payment services. More information is available on Chargebee's Privacy Policy at: https://www.chargebee.com/privacy/
- **Chart.io:** allows us to combine data from different systems and databases to perform data analysis to provide and improve the service. For more information, visit their Privacy Policy: https://chartio.com/about/legal/privacy/

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notice/

For more information about our service providers that carry out international data transfers, please contact dpo@qustodio.com.

4. **Data Security**

We have adopted technical and organizational measures to preserve and protect your personal information from unauthorized use or access and from being altered, lost or misused, taking into account the technologic state of art, the features of the information stored and the risks to which the information is

exposed. In case of a security breach, we will take the appropriate measure and will notify you electronically in a timely manner.

5. **Data Subject's Rights**

In accordance with the applicable data protection law, you have the right to:

- **Request access** to your personal data (commonly known as a "data subject access request"). This enables you to receive a copy of the personal data be hold about you and to check that we are lawfully processing it.
- **Request correction** of the personal data that we hold about you. This enables you to have any incomplete or inaccurate data we hold about you corrected, though we may need to verify the accuracy of the new data you provide to

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scenarios: (a) if you want us to establish the data's accuracy; (b) where our use of the data is unlawful but you do not want us to erase it; (c) where you need us to hold the data even if we no longer require it as you need it to establish, exercise or defend legal claims; or (d) you have objected to our use of your data but we need to verify whether we have overriding legitimate grounds to use it.

- **Request the transfer** of your personal data to you or to a third party (known as "data portability"). We will provide to you, or a third party you have chosen, your personal data in a structured, commonly used, machine-readable format. Note that this right only applies to automated information which you

initially provided consent for us to use or where we used the information to perform a contract with you.

- **Withdraw consent at any time** where we are relying on consent to process your personal data. However, this will not affect the lawfulness of any processing carried out before you withdraw your consent. If you withdraw your consent, we may not be able to provide certain products or services to you. We will notify you if this is the case.
- **File a complaint to the supervisory authority** You have the right to file a complaint to the Agencia Española de Protección de Datos (AEPD), in Calle Jorge Juan,6, 28001 Madrid (www.aepd.es) if you consider that we are violating the data protection and privacy applicable laws. Before contacting with the AEPD, please do not hesitate to contact with us

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Only you, or someone legally authorized to act on your behalf, may make a request to know or delete related to your personal information. To designate an authorized agent, please submit a request by emailing us at dpo@qustodio.com.

You may also make a request to know or delete on behalf of your child by emailing us at dpo@qustodio.com.

You may only submit a request to know twice within a 12-month period. Your request to know or delete must:

- Provide sufficient information that allows us to reasonably verify you are the person about whom we collected personal information or an authorized representative, which may include, but is not limited to:
  - (a) contact information associated with the account;
  - (b) the user profile name;
  - (c) the name of one or more Monitored Devices;
  - (d) technical information (e.g., model ID, serial number, IMEI code, operating system, etc.); or
  - (e) any other piece of personal information we determine in our sole discretion to be sufficient for verifying your identity to a reasonable degree of certainty.

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response by mail or electronically, at your option.

Any disclosures we provide will only cover the 12-month period preceding our receipt of your request. The response we provide will also explain the reasons we cannot comply with a request, if applicable. For data portability requests, we will select a format to provide your personal information that is readily useable and should allow you to transmit the information from one entity to another entity without hindrance.

We do not charge a fee to process or respond to your verifiable consumer request unless it is excessive, repetitive, or manifestly unfounded. If we determine that the request warrants a fee, we will tell you why we made that decision and provide you with a cost estimate before completing your request.

8. Non-Discrimination

We will not discriminate against you for exercising any of the rights described above, and we will not:

- Deny you goods or services.
- Charge you different prices or rates for goods or services, including through granting discounts or other benefits, or imposing penalties.
- Provide you a different level or quality of goods or services.
- Suggest that you may receive a different price or rate for goods or services or a different level or quality of goods or services.

9. **Commercial Communications**

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use, contacts, connections, payments, messages and other communications, posted and received content, etc.). Furthermore, in the event of any promotional or other campaign, Qustodio may process the contact information (name and email address) of a potential new client or user of our Services you provide us with. This section B applies to the processing of these data, as well.

We, as data processor under the GDPR and service provider under the CCPA, process User Data under instruction from you (our customer, the "Client"), acting as data controller. This means that you are in control of this data: you determine which data is collected and how it is used for your parental control purposes. Without prejudice to the issue that such data is in most cases processed within a domestic context, we are providing a commercial service to

you and therefore our processing of the User Data on your behalf is governed by the terms of this Section B.

1. **Object and Term**

The purpose of this Section B is to regulate the processing of the User Data indicated in Appendix 1, that You make available to Qustodio for us to provide you with the Qustodio Service. The term of validity of this Section B is established by virtue of your subscription with Qustodio.

2. **Warranty and Indemnity**

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Client is responsible for setting the parent control panel configurations on the Qustodio Platform that (i) controls the Services, the supervision and monitoring of the activities and (ii) determines the personal data to be covered. The installation of the Qustodio Device Software and your configuration of the control panel constitute instructions for us to process User Data on your behalf, to provide you the Services. The level and degree of such surveillance and monitoring is entirely under your control, and we will not be liable for any such configuration and control carried out by you. Furthermore, your support requests via email or phone also constitute instructions for us to process User Data, as long as processing User Data is necessary to help you with your request or take the action to ask us to. All such User Data will be under your

responsibility, with the Company acting as data processor in accordance with this Privacy Policy.

5. **Retention**

We store the User Data until you close your Account. After that period of time, we disassociate the personal data from the individual it refers to and use such disassociated data for internal research and analysis purposes.

6. **Data Removal**

During your subscription, we generally retain your User Data on an identifiable basis for 12-month periods, for providing our annual behaviour report. In addition, through the Platform control panel, you may delete all historical data

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c) Take all appropriate technical and organisational measures to ensure a level of safety appropriate to the risk of processing.

d) Respect the conditions for having recourse to another data processor, as established in the current legislation on protection of personal data.

e) Assist the data controller taking into account the nature of the processing, through appropriate technical and organisational measures, whenever possible, so that it can comply with its obligation to respond to requests for the exercise of the rights of the data subjects, in this case, the Users.

f) Assist you in ensuring that you comply with your privacy obligations, if any, taking into account the nature of the processing and the information that is available to Qustodio.

g) At your choice, either destroy or return all personal data once the processing services have been completed and destroy any existing copies unless the retention of personal data is required under Union or applicable Member State law.

h) Make available to you all information necessary to demonstrate compliance with the obligations established herein.

i) Process the User Data placed at the disposal of Qustodio in a way that ensures that the personnel in charge follows Your instructions.

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Similarly, in the event that you and / or Qustodio do/es not proceed with the request of the User, he/she/they shall inform the latter without delay, and no later than one month after receipt of the request, shall provide the User with the reasons why he/she/they has/have not acted and inform the User of his/her/their right to file a complaint before a competent authority and to file a judicial appeal. The response to the User's request shall be made in the same format as that used by the person concerned, unless he/she/they requests that it be done otherwise.

9. **Subcontracting**

Qustodio may subcontract its obligations and/or give access to User Data to third party service providers, if it is necessary for the proper provision of the Services. For this purpose, you hereby expressly authorises Qustodio to subcontract the entities indicated in Appendix 1. Qustodio ensures a contract exists with each third-party subcontractor, which is sufficient to require the subcontractor to process User Data in accordance with the applicable data protection laws and the Client's instructions.

10. **International Transfer of Data**

International transfers of User Data about users located in the EU may only be performed if the requirements of national and/or European laws and regulations that regulate them are met. User Data about users located outside

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advisable to do so. Otherwise, upon termination, resolution or expiration, or when no longer legally required to keep the data, Qustodio shall destroy or return to the Client all personal data and any copies of it, as well as any support or other document containing any personal data. This is without prejudice to the right of Qustodio to continue process User Data where such data is being processed by Qustodio or for the defense of its legal interests.

13. **Changes to Our Privacy Policy**

We reserve the right to amend this privacy policy at our discretion and at any time. When we make changes to this privacy policy, we will post the updated notice on the Application and update the notice's effective date. **Your**

continued use of the Qustodio Services following the posting of changes constitutes your acceptance of such changes.

Appendix 1	
Details of Processing	
For CCPA compliance purposes, Qustodio has collected the following types of personal data/information from the consumers described below within the past twelve months. Under the GDPR, the data indicated below are data that Qustodio processes as data processor.	
Categories of Data Subjects/consumers	Users of the devices which are monitored by Qustodio. Third parties who interact with the

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(c) technical information about the Monitored Device, such as the model ID.

For iOS devices, after installing the MDM profile, Qustodio will have access to all the traffic of the device. This information (coming from the device) only goes to Qustodio servers and is not shared with any third party. The specific information collected through MDM is:

- Domain names, user agent and operating system version; in order to categorize

websites and applications visited by the device, and thus make the filtering established by the parent. It is also used to report activity to the parent.
- The URL address in the web search engines; to report the search to the parents.

List of third parties accessing the User Data

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Qustodio Service. We inform you that in order to present the School Manager Data via our user interface, we use certain IT service suppliers indicated above who process the data for us (support, data management and analysis and user experience management).

We will store the School Manager Data until the school, as Data Controller, requests us to delete them. You and your child have the right to exercise your data subject rights as indicated in section A.5, should we receive any request on how Linewize or the school process personal data, we will forward such request to them.

Should you have any questions on how School Manager process your child's

data, please contact privacy@qoria.com.

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PRODUCT

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